Ocean Vacations Inc.

Website:Oceanvacationsmb.com | Email: Oceanvacationsmb@gmail.com | Phone: 843-222-6516

PROPERTY MANAGEMENT SERVICE AGREEMENT

Property Address:_____

I/We, _____("Owner"), as rightful and lawful owner of See Exhibit "A" attached ("Property") (additional properties are listed above or on Exhibit "A" attached hereto) hereby retain and employ Ocean Vacations Inc. (The company) to provide services described herein to the Property and for our benefit, Term.

This Agreement will be effective on _____

Owner may terminate this Agreement upon one hundred twenty (120) days written notice, without cause. Owner understands and agrees this period is intended to cover pre-bookings and obligations concerning the Property. Work in progress shall continue until completed.

The Company may terminate this Agreement without cause by providing sixty 60 days written notice.

The Company may also terminate this Agreement within ten 10 business days after notice to the Owner if payment of any invoice is not made when due, if the Owner fails to respond or approve necessary repairs, fails to pay approved vendors, or fails to approve or provide essential items required to operate the property as a vacation rental or short term rental.

If terminating at the Termination Date, Owner will notify the Company in writing ninety (90) days prior to the Termination Date. If Termination Notice is not delivered, the agreement will be automatically renewed for twelve (12) months.

Company shall be compensated upon the normal rates and terms throughout the term of the Agreement. Owner shall be responsible for any Cancellation Fees for Platforms used by Company to promote, advertise, rent, or any other use beneficial to the Owner or the Property.

Commissions/Compensation – Company shall be entitled to a commission of _____% as a rental holdback from the net accommodation revenues generated by the Property.

Inspection - Owner shall be responsible to inspect the Property a minimum of once per year to determine no safety issues presenting a risk to tenants, guests or the general public. Owner shall be responsible to repair all safety issues discovered by the inspection or known by the Owner through any other means.

Services - I/We authorize Ocean Vacations full access to the property to provide services for maintenance, repair, and upkeep ("Services"). Ocean Vacations shall be allowed to coordinate, supervise, inspect and approve or reject Services provided. In addition, Ocean Vacations shall be authorized to track, list and update the Property through online advertising, programming and social media.

Liability Insurance and Hold Harmless - Owner shall maintain, at all times during the term of this Agreement, and shall keep in force for the benefit of the Owner, the Company, invitees, guests, employees and agents of the Company, third-party service providers, their employees and agents, and the general public, liability insurance against claims for personal injury, death or property damage occurring in, on or about the Premises of the Property and any appurtenances thereto.

Owner shall provide a copy of the Insurance Declarations Page or Policy to the Company or its authorized Agent within ten (10) business days from the effective date of this Agreement.

Owner shall notify and request to add Company as a loss payee or additional insured to any Liability Insurance Policies held by it covering the Property, subject to this Agreement.

Owner shall HOLD the Company HARMLESS for any injury, death or property damage occurring in, on or about the Premises of the Property and any appurtenances thereto. Owner and Company agree, however, that Owner shall have no duty to defend, hold harmless, and/or indemnify the Company for any claims of bodily injury, death and/or property damage to Company's agents, employees, contractors, and/or subcontractors arising from the performance of any work or services at the Property.

Business License(s) and Taxes - Owner shall be responsible for obtaining a business license from the appropriate governmental authority having jurisdiction over the Owner's Property. Owner shall be solely responsible for any and all taxes and/or fees, including but not limited to, federal, state or local taxes, real, personal, business and/or hospitality taxes/fees.

Owner shall provide a copy of its Business License to the Company within ten (10) business days from the effective date of this Agreement, whichever is later.

Authorization - Ocean Vacations strives to seek Owner's pre-approval for services to be provided, however, in the event that the Owner cannot be reached, I/We authorize Ocean Vacations to utilize, in its sole discretion, employees and independent contractors to provide Services. Ocean Vacations is authorized to contract with independent contractors up to **$200.00** for Services without further approval from me/us.

If the cost of Services is expected to exceed **$200.00** I/we will receive notice and a request to approve or deny such Services. Ocean Vacations may rely on texts, emails or any other written authorization by me/us to exceed the cost limitation.

Fees - Each month's earned fees shall be invoiced and paid by the 5th of the next month. Fees not paid by the 10th of the month shall incur a late fee and interest shall accrue on any balance due at the rate of eighteen (18%) percent per annum. In the event litigation is required to collect any outstanding balance, reasonable attorney's fees and costs shall be paid by Owner.

Force Majeure - Any delays in performance of any obligation of Ocean Vacations under this Agreement shall be excused to the extent that such delay(s) are caused by wars, national emergencies, natural disasters, strikes, labor disputes, utility failures, government regulations, riots, adverse weather, and other similar causes not within the control of Ocean Vacations, and any time periods required for performance shall be extended accordingly.

PAYOUT:

Ocean Vacations will hold all guest payments in a trust account as required by law. Funds will be transferred to the Owner's bank account between the 5th and 10th of each month.

Before any transfer, Ocean Vacations will deduct all applicable expenses, including the Property Management Commission PMC, taxes, repairs, and any other approved costs.

If Ocean Vacations collects any funds for damages through a security deposit, Airbnb AirCover, or VRBO Damage Protection, those amounts will be forwarded to the Owner. The Owner may choose how to handle the repair, as long as it does not impact upcoming guest stays.

Any refunds issued to guests due to property condition or issues during the stay, including but not limited to mechanical failures, plumbing issues, or leaks, will be deducted from the Owner's payout.

All calculations are based on Net Accommodation revenue. From the Net Accommodation amount, Ocean Vacations will deduct PMC, expenses, repairs, and any other applicable charges before releasing the remaining balance to the Owner.

Entire Agreement - Parties consent that this Agreement expresses the entire agreement between the Parties, that there are no other agreements, oral or otherwise, modifying the terms and this Contract is binding on Parties and principals, heirs, personal representatives, successors, and assigns. Illegal provisions are severable.

Mediation Clause - Mediation is an alternative dispute resolution system and may help avoid potentially expensive and lengthy litigation. The Parties agree to mediate any dispute prior to the filing of a judicial action.

Governing Law - This agreement shall be interpreted and construed in accordance with the laws of the State of South Carolina. Venue shall be proper in the County and State where the property is situated, including venue for Mediation.

> **WHEREFORE**, the Parties have executed this Service Agreement or caused the same to be executed by their authorized representative.

In the event the owner sells, transfers, or withdraws the property from the vacation rental program, any existing reservations on the property calendar must be honored. If cancellation fees are charged by the booking channels and are not waived, the owner will be responsible for covering those fees. The owner is also responsible for reimbursing Ocean Vacations in the event a guest is refunded due to property damage, mechanical breakdown or failure, or unavailable amenities.

Ocean Vacations reserves the right to terminate this agreement if the property does not meet the minimum standards required for a vacation rental. This includes situations where the owner is unresponsive in approving necessary repairs or fails to provide essential items needed to host guests for short-term stays.

If any reservations must be canceled due to the owner's lack of response or failure to provide a safe and properly equipped property, the owner will be responsible for all cancellation fees.

Owner Responsibilities:
Pay for the cost of a smart lock compatible with the automated system that generates a unique access code for each guest, unless the property is already equipped with a compatible smart lock that can be used by our system. Pay for the initial purchase of three sets of linens per bed and three sets of towels per guest. Pay for the cost of pillows and bed comforters if replacements are required.

Pay the cleaning fee for personal use of the property or for stays by the owner's guests _____. Ocean Vacations will wash and replace linens and towels after the initial purchase.

Ocean Vacations Responsibilities:
List the property. Manage inquiries and reservations. Coordinate cleaning and laundry. Coordinate maintenance. Replace batteries, HVAC filters and light bulbs.

Conditional Services (based on the property's needs): _____

Ocean Vacations will coordinate the following services based on the property's needs and will bill or deduct those fees from the owner's payout each month.

Pool Cleaning:
Fall to Spring, once per week $150/month
Spring to Fall, twice per week $250/month

Pest Control per unit:
$45 per month

Basic Landscaping:
$45 to $65 per visit depending on yard size
Spring to Fall, twice per month ($90 to $130 per month)

IN WITNESS WHEREOF, the parties hereto have subscribed their names on this _____day

of_____, 20_____.

OWNER: _____ OCEAN VACATIONS:_____

PAYOUT/DIRECT DEBIT AUTHORIZATION AGREEMENT

I _____hereby authorize OCEAN VACATIONS INC

to initiate debit/crdit entries (and/or any subsequent correction entries) to/from my bank account located at the financial institution indicated below:

Financial Institution _____

Routing Number _____ Account Number _____

Amount (or how amount is determined): _____

Frequency (Weekly, Monthly, etc.): _____ Start Date (if recurring): _____

Date of Debit(s): Apx on the 5th of each month, If the debit is recurring and the date of the debit falls on a non-banking day, the debit will hit your account on the next banking day and will not hit your account prior to the authorized date.

I acknowledge that the origination of ACH transactions to my account must comply with the provisions of U.S. law.

This authorization will remain in full force and effect until OCEAN VACATIONS INC has received written notification from me of its termination in such time and in such manner as to afford OCEAN VACATIONS INC a reasonable opportunity to act on it.

Termination of This Agreement: You may cancel this agreement by giving us written notice.

Your notice will be effective 45 days after we receive it.

Printed Name _____ Signature _____

Date _____

Please print, complete Form W-9, and return it to us.

Form **W-9**
(Rev. March 2024)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

Go to *www.irs.gov/FormW9* for instructions and the latest information.

Give form to the requester. Do not send to the IRS.

Before you begin. For guidance related to the purpose of Form W-9, see *Purpose of Form*, below.

Print or type.
See ***Specific Instructions*** on page 3.

1 Name of entity/individual. An entry is required. (For a sole proprietor or disregarded entity, enter the owner's name on line 1, and enter the business/disregarded entity's name on line 2.)

2 Business name/disregarded entity name, if different from above.

3a Check the appropriate box for federal tax classification of the entity/individual whose name is entered on line 1. Check only **one** of the following seven boxes.

☐ Individual/sole proprietor ☐ C corporation ☐ S corporation ☐ Partnership ☐ Trust/estate

☐ LLC. Enter the tax classification (C = C corporation, S = S corporation, P = Partnership) . . . .

Note: Check the "LLC" box above and, in the entry space, enter the appropriate code (C, S, or P) for the tax classification of the LLC, unless it is a disregarded entity. A disregarded entity should instead check the appropriate box for the tax classification of its owner.

☐ Other (see instructions)

3b If on line 3a you checked "Partnership" or "Trust/estate," or checked "LLC" and entered "P" as its tax classification, and you are providing this form to a partnership, trust, or estate in which you have an ownership interest, check this box if you have any foreign partners, owners, or beneficiaries. See instructions . . . . . ☐

4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):

Exempt payee code (if any)

Exemption from Foreign Account Tax Compliance Act (FATCA) reporting code (if any)

(Applies to accounts maintained outside the United States.)

5 Address (number, street, and apt. or suite no.). See instructions.

Requester's name and address (optional)

6 City, state, and ZIP code

7 List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. See also *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number

☐☐☐ – ☐☐ – ☐☐☐☐

or

Employer identification number

☐☐ – ☐☐☐☐☐☐☐

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and, generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here **Signature of U.S. person** **Date**

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to *www.irs.gov/FormW9*.

What's New

Line 3a has been modified to clarify how a disregarded entity completes this line. An LLC that is a disregarded entity should check the appropriate box for the tax classification of its owner. Otherwise, it should check the "LLC" box and enter its appropriate tax classification.

New line 3b has been added to this form. A flow-through entity is required to complete this line to indicate that it has direct or indirect foreign partners, owners, or beneficiaries when it provides the Form W-9 to another flow-through entity in which it has an ownership interest. This change is intended to provide a flow-through entity with information regarding the status of its indirect foreign partners, owners, or beneficiaries, so that it can satisfy any applicable reporting requirements. For example, a partnership that has any indirect foreign partners may be required to complete Schedules K-2 and K-3. See the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS is giving you this form because they